

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN VANUATU

Complete Community Opposition How-To

This guide is built around Vanuatu's distinctive two-level defence — from below, customary land rights, the chiefs, and kastom that protect the ground itself; from above, a small nation's reach into international law and diplomacy for the threats too big for one island — and it names the tools you'll meet (custom ownership and consent, the chiefs, the lease, the courts, the ICJ opinion, regional solidarity) in plain words.

INTRODUCTION & FRAMEWORK

Vanuatu has shown the world a distinctive way to fight — on **two levels at once**. The first is close to home and built into the country's foundations: the land belongs to the **custom owners**, protected by the Constitution, and generally cannot be sold, only used with the **consent** of those whose ancestral ground it is. A community that knows and holds its customary rights, governed by its chiefs and its **kastom**, has a defence against dispossession that communities in many countries can only dream of. The second level Vanuatu carried all the way to the highest court on Earth. When the threats grew too large for any one island — the rising seas, the warming that could drown the country itself — a group of **law students in Port Vila** refused to accept that nothing could be done, and their idea, taken up by the government, became a global campaign. It grew to well over a hundred co-sponsoring countries at the UN and drew the broadest participation in the Court's history, until in **July 2025 the International Court of Justice** delivered a historic opinion, spearheaded by Vanuatu, in which all fifteen judges agreed that **states have binding legal duties to act on climate change**. A nation of a few hundred thousand had made the world's court speak.

Vanuatu fights on two levels at once, and that is the distinctive ni-Vanuatu contribution. Close to home, **customary land** belongs to the custom owners and **cannot be sold, only leased with consent**; the **chiefs and kastom** govern it, a **lease** requires that consent, and the **courts** enforce customary rights — a defence against dispossession many communities can only dream of. For the threats too big for any one island, Vanuatu's **leadership in international law** (the July 2025 ICJ opinion that states have binding duties to act on climate change), its **regional solidarity**, and its **national policy** (on climate, on deep-sea mining) are real levers; protest, petition, and litigation are lawful. A community that understands both knows when to hold its ground with custom and when to lift its cause to the world. But these tools have real limits, and this guide states them plainly. The ICJ opinion is **advisory, not binding** — an authoritative statement of what the law requires, powerful but indirect, which shapes how other courts rule and how the public judges its leaders, but does not by itself force a government to act or stop a single project. The **seas keep rising** whatever a court says, and the great emitters are far away. Customary land is protected in principle, but in practice it can still be **alienated through long leases**. And Vanuatu is **small and poor**, its power moral, legal, and diplomatic rather than coercive. So aim for what these levers can deliver — a lease refused, consent withheld, the ground held, a duty affirmed, a cause lifted to the world — using custom close to home and the law's reach for what is bigger.

The Whole Strategy in One Idea

A threat looks unstoppable, but it meets a two-level defence, and a chain breaks at its weakest link. A ni-Vanuatu fight turns, close to home, on your **customary land** — so on your **consent** and the **chiefs** and

the **courts**; and, for the bigger threats, on Vanuatu's **reach into international law, regional solidarity, and national policy**. Every one of those is a link you can grab — custom for the ground you stand on, the law's reach for what is too big. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend months on this, work out your real situation:

- **If it's a lease or a project on your customary land, your consent is your sharpest lever** — the land cannot be used without it, and the chiefs and kastom stand behind you.
- **If your land is being alienated through a long lease, act early** — customary land is protected in principle but can be lost in practice; document and hold your rights.
- **If the threat is too big for one island — climate, deep-sea mining — lift it to the higher level** — national policy, regional solidarity, the world's institutions and the ICJ opinion.
- **If you look to the ICJ opinion, value it for what it is** — a powerful tool for the long struggle, not an immediate remedy against a named polluter.

Read the whole guide once before you move. Two habits run through it: **hold your ground with custom, and lift the bigger cause to the world** — the two-level defence — and **know which level a threat belongs to**, so you use consent and the chiefs for the lease, and the law's reach for the sea. That's how Vanuatu defends its islands and moves the world.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides — on Two Levels

Close to home: land belongs to the **custom owners**, and a project or **lease** needs their **consent**, with the **chiefs and kastom** governing and the **courts** enforcing customary rights. **Above:** the threats too big for one island — climate, deep-sea mining — are met through **national policy, regional solidarity** (the Pacific bloc), and Vanuatu's **leadership in international law**, of which the ICJ opinion is the landmark. Know which level your threat belongs to, and aim there.

How a Project Moves — and Where You Jump In

The lease and consent. A project needs your customary land, leased with consent. *Your opening — the strongest close to home:* withhold or challenge consent, backed by the chiefs.

The chiefs and the courts. *Your opening:* the chiefs and kastom govern the land, and the courts enforce customary rights against an improper lease or dispossession.

National policy (the bigger threats). *Your opening:* press national policy on climate and deep-sea mining.

The world's institutions. *Your opening — the higher level:* lift the cause into regional solidarity and international law, as Vanuatu did to the ICJ.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and what it needs from you** — because a project on customary land needs your consent, your leverage. **What level it belongs to** — a local lease (custom and consent) or a global threat (national policy, the law's reach). **How your land could be alienated** — the long lease, the

manufactured consent — because that is where dispossession happens.

Who's Supposed to Be Watching

Each is an ally or an arena. The **custom owners and chiefs** govern the land. The **courts** enforce customary rights. **National policy** addresses the bigger threats. **Regional solidarity** (the Pacific bloc) and **international law** (the ICJ opinion) reach the global threats. And Vanuatu's **communities, chiefs, environmental and legal organisations, and international allies** are the forces that reach furthest — the two-level defence the country has mastered.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether it's your customary land (close to home), whether you hold consent and the chiefs, and — for the bigger threats — how far the law's reach and solidarity can carry.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Withhold / challenge consent (customary land)	35–60%	months	low	Lease refused; project blocked
Chiefs + kastom authority	30–55%	months	low	Custom governance upheld
Court challenge (customary rights / lease)	30–55%	months–2 yr	mod	Improper lease struck; ground held
Document + hold customary rights (vs alienation)	25–50%	ongoing	low	Land protected from long-lease loss
National policy (climate / deep-sea mining)	20–45%	months–yr	low	Policy pressed; a threat curbed
Regional solidarity + international law	25–50%	years	low	The law clarified; the cause lifted
Everything together (custom close to home)	45–70%	months–2 yr	mod	Lease refused, consent held, ground kept
Everything together (the bigger threats)	20–45%	years	low	Duty affirmed; policy moved; cause carried

The levers that move the needle most are **consent over your customary land and the chiefs' authority** (close to home), and **regional solidarity and international law** (for the bigger threats). Vanuatu shows both ceilings — a community holding its ground with custom, and a small nation making the ICJ speak — and the honest floor: the ICJ opinion is advisory, land can still be alienated, and the seas keep rising. So aim for a lease refused, consent withheld, the ground held, a duty affirmed, and a cause lifted to the world.

On cost: withholding consent, invoking the chiefs, and documenting customary rights are cheap; litigation costs more; and the international level is moral, legal, and diplomatic, not a matter of wealth — a nation of a few hundred thousand moved the world's court. The great strength is the two-level defence; the great requirement is knowing which level a

threat belongs to.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this lease, this withheld consent, this threat's true level — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project or threat, and who is behind it.

2. Whose land is it on, or how big is the threat? Establish whether it's on your **customary land** (close to home — consent is your lever) or a threat too big for one island (climate, deep-sea mining — the higher level). **Your customary land and consent are your sharpest lever close to home.**

3. What stage is it at, and what's the next deadline? Is a lease being sought (withhold consent)? Is land being alienated (act early)? Is a national policy or international moment open (lift the cause)? These openings are time-bound.

4. What does it need from you — and how might your land be lost? Your consent; and the long lease or manufactured consent through which customary land can be alienated.

5. Who stands with you — chiefs, community, allies? The custom owners, the chiefs, the community and kastom; and, for the bigger threats, national, regional, and international allies. Vanuatu's law students reached the world; a community reaches its chiefs and, when needed, beyond.

What this looks like in real life. A developer seeks a long lease of a community's customary land, with consent unclear. The five questions yield: the developer; your customary land (close to home — your lever); a lease being sought and land at risk of alienation; a project needing your consent; and the chiefs and community behind you. That's the ni-Vanuatu pattern close to home — withhold consent, invoke the chiefs and kastom, and go to the courts against an improper lease; and for a bigger threat, lift it to policy, solidarity, and the law.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — of your customary rights, or of the threat. Build it in three layers.

Layer one: your customary rights and consent. Document your **customary ownership** — the boundaries, the gardens, the reef, the sacred places, the chiefs' and kastom governance — and record clearly whether **consent** was given. This is the foundation of the close-to-home defence, and it guards against alienation through a long lease.

Layer two: the lease or the threat. Get the **lease** and its terms (or the project's approvals), and, for a bigger threat, document its nature and scale — the climate harm, the deep-sea mining plan — for the higher-level fight.

Layer three: the map and the level. Lay the project or threat over your customary land (close to home) or map its true scale (the bigger threat), so you know which level to fight on. Walking into the chiefs, the courts, national policy, or the world with your documented rights, the improper lease, or the threat's scale is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **Proof of customary ownership and governance** — boundaries, gardens, reef, sacred places, the chiefs and kastom.
- **The record of consent** — given or withheld.
- **The lease and its terms, or the project's approvals** — from the parties and the land records.
- **The bigger threat's nature and scale** — for the higher-level fight (climate, deep-sea mining).
- **Named testimony** — of the custom owners, chiefs, and community.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; the chiefs, the community, and — when needed — the wider world give you the two-level power Vanuatu has mastered. Build in four moves.

Anchor in the custom owners and the chiefs. Close to home, the strength is the custom owners and the chiefs, governing by **kastom**, united. Hold that unity, so consent cannot be manufactured or the community split.

Bring in the courts and lawyers when needed. For an improper lease or dispossession, the **courts** enforce customary rights. Bring in legal help to hold the ground.

Know when to lift the cause. For a threat too big for one island — climate, deep-sea mining — reach the higher level: **national policy, regional solidarity, and the world's institutions**, as Vanuatu's students reached the ICJ. A community that understands both levels knows when to hold and when to lift.

Build to last. Ni-Vanuatu fights run from a single lease to a years-long global campaign. Build clear roles, a secure archive, a way to decide together through the chiefs and community, and the endurance for both levels — the ground held with custom, the cause carried to the world.

STEP 4: CUSTOM, THE COURTS & THE LAW'S REACH

Vanuatu's sharpest levers are consent and the chiefs close to home, and international law's reach for the threats too big to stop alone.

Consent, the Chiefs, and Customary Land — the Close-to-Home Lever

Your first and sharpest lever close to home: **customary land cannot be used or leased without the custom owners' consent**, governed by the **chiefs and kastom**. Withhold or challenge consent, invoke the chiefs' authority, and hold the community united so consent cannot be manufactured. This protects the ground itself — a power few peoples enjoy.

The Courts and Alienation

Customary land is protected by the Constitution, but can be **alienated through long leases**. Use the **courts** to challenge an improper lease or dispossession and to enforce your customary rights — and act early, because in practice land can be lost.

The Law's Reach — for the Bigger Threats

For the threats too big for one island — climate, deep-sea mining — lift the cause to the higher level: **national policy, regional solidarity, and international law**. The **ICJ opinion**, spearheaded by Vanuatu, confirms that states have binding legal duties to act on climate — a powerful tool that shapes how other

courts rule, how negotiators bargain, and how the public judges its leaders. Value it for the long struggle, not as an immediate remedy.

The Honest Limits

Straight talk: consent and the chiefs are powerful close to home, but land can still be alienated; and the ICJ opinion is advisory, the seas keep rising, and Vanuatu's power is moral and legal, not coercive. So use both levels — custom and the courts for the ground, the law's reach and solidarity for the bigger threats — and count a lease refused, consent withheld, the ground held, a duty affirmed, and a cause lifted to the world as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it — on the right level.

Consent becomes a veto (close to home). Not "we don't want the project" but *"this is our customary land, and it cannot be used without our consent — which we withhold, and the chiefs stand with us."*

An improper lease becomes a court case. *"This lease was made without proper consent — an alienation of our customary land the court can undo."*

A global threat becomes a matter of law (the higher level). *"The climate that drowns our islands is a matter of binding legal duty, as the ICJ has confirmed."*

Deep-sea mining becomes a regional cause. *"Tearing the ocean floor is a threat to us all, to be met by the Pacific together and the world's institutions."*

Match it to the level: the consent and the chiefs to the close-to-home fight; the improper lease to the courts; the global threat to national policy, regional solidarity, and international law.

STEP 5: MEDIA STRATEGY

In Vanuatu, attention works on both levels — a community's stand reaches the chiefs and the nation, and a small nation's cause, carried with moral and legal force, reaches the world, as the ICJ campaign did. A free press and Pacific solidarity make the media front reach far.

Lead with the ground or the cause, not procedure. Close to home: "this is our customary land, our gardens and reef, and it cannot be taken without our consent." For the bigger threat: "the sea is drowning our islands, and the law says states must act." Use your strongest material: the customary rights, the improper lease, or the threat's scale, and community and chiefly voices.

Work the right audiences. Close to home, the chiefs, the community, and the national press; for the bigger threat, regional solidarity and the international community, where a small nation's moral and legal case carries furthest. Make it easy: clear summaries, a map, strong testimony.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And let the custom owners and chiefs lead the close-to-home story, and the nation and its allies lead the global one.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Withholding / questioning consent (to the party / lands office).

Subject: Consent for [project/lease] on our customary land — [location].

"We, the custom owners of [place], with our chiefs, record that we [withhold / have not given] our consent to [project/lease] on our customary land. [Contact.]"

8B — Invoking the chiefs and kastom.

Subject: Our customary land and kastom — [project].

"We, the custom owners of [place], call on our chiefs and the council to uphold our kastom governance of this land against [project/lease]. [Contact.]"

8C — Court challenge (to a lawyer).

Subject: Improper lease / dispossession — [location].

"Our community's customary land is threatened by [an improper lease / dispossession] without proper consent: [specifics]. We ask your advice on challenging it in the courts to hold our ground. [Contact and evidence summary.]"

8D — Pressing national policy (the bigger threats).

Subject: [Climate / deep-sea mining] — national policy.

"We ask the government to strengthen national policy on [climate / deep-sea mining], which threatens us beyond what any one community can meet, consistent with Vanuatu's leadership and the ICJ opinion. [Attach evidence.]"

8E — To regional / international allies.

Subject: Lifting our cause — [threat].

"Our islands face [a threat too big to meet alone: climate / deep-sea mining]. As Vanuatu carried the climate cause to the ICJ, we ask for your solidarity and help to lift this to the region and the world. [Contact and evidence summary.]"

8F — To the developer / company.

Subject: No consent, and legal risk — [project].

"We are the custom owners of [place]. [Project] proceeds without our consent, on customary land protected by our Constitution. This carries real legal risk. [Contact and evidence summary.]"

8G — Letter to the (regional/international) press.

Subject: [Community/Vanuatu] defends its land / its future from [threat].

"On our customary land / for our drowning islands, we face [threat]. We can provide our customary rights or the threat's scale, and the voices of our people. [Contact.]"

8H — Uniting the community (both levels).

Subject: Our ground, our future — let's hold and lift together.

"[Threat] faces us. Close to home, our custom and our chiefs protect our ground — let's withhold consent and hold together. And for what is too big for one island, Vanuatu made the world's court speak — let's lift our cause too. Please stand with us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Establish it's your customary land, and unite behind the chiefs (8A/8B).** Consent is your strongest close-to-home lever.
2. **Withhold consent, and record it clearly.**
3. **Document your customary rights — guard against alienation by long lease.**
4. **If the lease is improper, get a lawyer to challenge it (8C).**
5. **If the threat is too big for one island, lift it — national policy, regional solidarity, the law (8D/8E).**
6. **Reach allies and, when needed, the world (8G/8H).**

Even lean, those six use custom close to home and the law's reach for the bigger threats — the two-level ni-Vanuatu template.

WHEN THE SYSTEM IS TILTED

Vanuatu's two-level defence is strong, but pressures press, and you must plan for them.

When your land is being alienated. Customary land is protected in principle but lost in practice through long leases. Act early: document your rights, withhold consent, invoke the chiefs, and challenge an improper lease in the courts.

When consent is manufactured. Hold the custom owners and community united behind the chiefs, so a developer cannot buy or split a false "consent."

When the threat is too big to stop alone. Don't despair — lift it to the higher level, as Vanuatu did to the ICJ. National policy, regional solidarity, and international law are real, if indirect, levers.

When the ICJ opinion feels like too little. It is advisory, not a bailiff's verdict. Value it as a powerful tool for the long struggle — shaping courts, negotiations, and public judgment — and pair it with the fights you can win close to home.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Vanuatu has real concerns about the alienation of customary land and the handling of leases, so this matters.

How to spot it. Leases made without proper consent; "consent" manufactured or bought; land alienated to the connected; benefits to officials while custom owners lose their ground.

Who's supposed to guard against it. Vanuatu's audit and oversight bodies examine public money and conduct. The **courts** can undo an improper lease. The **chiefs and kastom** institutions uphold customary governance. And Vanuatu's **communities, organisations, and free press** have exposed captured land deals.

How to fight it safely. Document precisely and factually — how consent was bypassed or bought, who benefits, what custom and the Constitution required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the audit bodies, the courts, the chiefs' institutions, and trusted journalists rather than making accusations you can't back. Pair the exposure with the consent and legal challenge.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together, on the right level. Your customary rights and consent are the close-to-home foundation; the chiefs and community are the muscle; the courts hold the ground; and for the bigger threats, national policy, regional solidarity, and international law lift the cause. Together they multiply. One at a time, or on the wrong level, they stall.

Early on (weeks 1–8): establish and document your customary rights; withhold consent; invoke the chiefs; and, for a bigger threat, map its scale and prepare to lift it.

In the thick of it (months–year+): challenge an improper lease in the courts; press national policy on the bigger threats; reach regional and international allies.

The long haul (year+ / years): hold and defend the ground with custom; carry the bigger cause through solidarity and the law; hold the line for a lease refused, consent withheld, the ground held, a duty affirmed, and a cause lifted to the world.

FINAL ASSESSMENT

Defending land and future in Vanuatu can be done — a community can hold its ground with custom, and a nation of a few hundred thousand made the world's highest court affirm that states must act on climate. Hold both truths. Vanuatu's distinctive power is real, on two levels: from below, customary land rights, the chiefs, and kastom protect the ground itself against the lease and the bulldozer, a power few peoples enjoy; from above, a small nation's leadership in international law and diplomacy confronts the threats too big for any one island. And the constraints are real: the ICJ opinion is advisory, not binding; customary land can still be alienated through long leases; the seas keep rising; and Vanuatu's power is moral, legal, and diplomatic, not coercive.

Here's the discipline that wins. Know which level your threat belongs to. Close to home, hold your ground with custom: establish and document your customary rights, withhold consent, invoke the chiefs and kastom, and challenge an improper lease in the courts — acting early, because land protected in principle can be lost in practice. For the threats too big for one island — the climate that drowns your shores, the deep-sea mining that would tear the ocean floor — lift the cause to the higher level: national policy, regional solidarity, and international law, as Vanuatu's law students lifted the climate cause to the ICJ. Value the opinion for what it is, a powerful tool for the long struggle. Count a lease refused, consent withheld, the ground held, a duty affirmed, and a cause lifted to the world as wins. That is the ni-Vanuatu way — custom to hold the ground, and the law's reach for what is too big to stop alone. So can you.